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AS AMENDED

By: Hildebrant, Deck, Menz,
Fugate, Wolfley, and
Rosecrants of the House

and

Woods of the Senate

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[ postsecondary education - TSgt Marshal Dakota
Roberts Gold Star Survivor Act - Gold Star - waiver -
spouse - children - noncodification - codification -
effective date ]
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~~BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:~~

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "TSgt Marshal Dakota Roberts Gold Star Survivor Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3218.7-2 of Title 70, unless there is created a duplication in numbering, reads as follows:

Within The Oklahoma State System of Higher Education, no
resident tuition or nonresident tuition shall be charged to the

1 spouse or children of a Gold Star recipient who was killed in the
2 line of duty in any branch of the United States Armed Forces,
3 provided that either:

4 1. The Gold Star recipient was a legal resident of the State of
5 Oklahoma at the time of death; or

6 2. The spouse or child maintains residency in the State of
7 Oklahoma during enrollment.

8 SECTION 3. AMENDATORY 70 O.S. 2021, Section 3218.7-1, as
9 amended by Section 2, Chapter 382, O.S.L. 2024 (70 O.S. Supp. 2025,
10 Section 3218.7-1), is amended to read as follows:

11 Section 3218.7-1. A. Within The Oklahoma State System of
12 Higher Education, no fees nor room and board shall be charged to:

13 1. Children of Oklahoma peace officers as defined by Section
14 648 of Title 21 of the Oklahoma Statutes who have given their lives
15 in the line of duty;

16 2. Children of Oklahoma firefighters who have given their lives
17 in the line of duty;

18 3. Children of commissioned members of the Oklahoma Law
19 Enforcement Retirement System, who have given their lives in the
20 line of duty; ~~and~~

21 4. Children of Oklahoma emergency medical technicians who have
22 given their lives in the line of duty; and
23
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1 5. The spouse or children of a Gold Star recipient who was
2 killed in the line of duty in any branch of the United States Armed
3 Forces, provided that either:

4 a. the Gold Star recipient was a legal resident of the
5 State of Oklahoma at the time of death, or

6 b. the spouse or child maintains residency in the State
7 of Oklahoma during enrollment.

8 B. Such waiver of fees and room and board shall be limited to a
9 period of five (5) years.

10 C. Such waiver of fees and room and board shall be a service
11 benefit of a commissioned member of the Oklahoma Law Enforcement
12 Retirement System.

13 D. For purposes of this section:

14 1. "Firefighter" means a volunteer firefighter or a permanent
15 salaried professional member of any fire department within the State
16 of Oklahoma; and

17 2. "Emergency medical technician" means a person volunteering
18 or employed as an emergency medical technician and who is licensed
19 as an emergency medical technician pursuant to Section 1-2505 of
20 Title 63 of the Oklahoma Statutes.

21 SECTION 4. AMENDATORY 70 O.S. 2021, Section 14-134, is
22 amended to read as follows:

1 Section 14-134. A. Within the system of career technology
2 districts, no resident tuition or nonresident tuition shall be
3 charged to ~~the~~:

4 1. Children of Oklahoma peace officers as defined by Section
5 648 of Title 21 of the Oklahoma Statutes who have given their lives
6 in the line of duty;

7 2. Children of Oklahoma firefighters who have given their lives
8 in the line of duty;

9 3. Children of members of the Oklahoma Law Enforcement
10 Retirement System who have given their lives in the line of duty or
11 whose disability is by means of personal and traumatic injury of a
12 catastrophic nature, as defined by Section 2-300 of Title 47 of the
13 Oklahoma Statutes, and occurred in the line of duty; ~~and~~

14 4. Children of Oklahoma emergency medical technicians who have
15 given their lives in the line of duty; and

16 5. The spouse or children of a Gold Star recipient who was
17 killed in the line of duty in any branch of the United States Armed
18 Forces, provided that either:

19 a. the Gold Star recipient was a legal resident of the
20 State of Oklahoma at the time of death, or

21 b. the spouse or child maintains residency in the State
22 of Oklahoma during enrollment.

23 B. Such waiver of resident tuition and nonresident tuition
24 shall be limited to a period of five (5) years.

1 C. Such waiver of resident tuition or nonresident tuition to
2 the children of deceased peace officers and to the children of
3 deceased firefighters as provided for in this section shall be a
4 service benefit of each Oklahoma peace officer and Oklahoma
5 firefighter.

6 D. For purposes of this section:

7 1. "Firefighter" means a volunteer firefighter or a permanent
8 salaried professional member of any fire department within the State
9 of Oklahoma; and

10 2. "Emergency medical technician" means a person volunteering
11 or employed as an emergency medical technician and who is licensed
12 as an emergency medical technician pursuant to Section 1-2505 of
13 Title 63 of the Oklahoma Statutes.

14 SECTION 5. AMENDATORY Section 3, Chapter 382, O.S.L.
15 2024 (70 O.S. Supp. 2025, Section 14-134.1), is amended to read as
16 follows:

17 Section 14-134.1. A. Within the system of career technology
18 districts, no fees shall be charged to:

19 1. Children of Oklahoma peace officers as defined by Section
20 648 of Title 21 of the Oklahoma Statutes who have given their lives
21 in the line of duty;

22 2. Children of Oklahoma firefighters who have given their lives
23 in the line of duty;

1 3. Children of commissioned members of the Oklahoma Law
2 Enforcement Retirement System, who have given their lives in the
3 line of duty; ~~and~~

4 4. Children of Oklahoma emergency medical technicians who have
5 given their lives in the line of duty; and

6 5. The spouse or children of a Gold Star recipient who was
7 killed in the line of duty in any branch of the United States Armed
8 Forces, provided that either:

9 a. the Gold Star recipient was a legal resident of the
10 State of Oklahoma at the time of death, or

11 b. the spouse or child maintains residency in the State
12 of Oklahoma during enrollment.

13 B. Such waiver of fees shall be limited to a period of five (5)
14 years.

15 C. Such waiver of fees shall be a service benefit of a
16 commissioned member of the Oklahoma Law Enforcement Retirement
17 System.

18 D. For purposes of this section:

19 1. "Firefighter" means a volunteer firefighter or a permanent
20 salaried professional member of any fire department within the State
21 of Oklahoma; and

22 2. "Emergency medical technician" means a person volunteering
23 or employed as an emergency medical technician and who is licensed
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1 as an emergency medical technician pursuant to Section 1-2505 of
2 Title 63 of the Oklahoma Statutes.

3 SECTION 6. This act shall become effective November 1, 2026.

4 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
5 April 14, 2026 - DO PASS AS AMENDED
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